

STATE OF NEW YORK

4042--A

2025-2026 Regular Sessions

IN SENATE

January 31, 2025

Introduced by Sens. HARCKHAM, ASHBY, HINCHEY, LIU, MARTINS, MAY, RHOADS, ROLISON, SCARCELLA-SPANTON, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- recommitted to the Committee on Disabilities in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil rights law and the public buildings law, in relation to enacting the "traveling with dignity act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "traveling with dignity act".

3 § 2. The civil rights law is amended by adding a new section 79-r to
4 read as follows:

5 § 79-r. Adult changing accommodations. 1. As used in this section,
6 the following terms shall have the following meanings:

7 (a) "Adult changing accommodation" means a height-adjustable adult
8 changing table that is for use by persons with disabilities who need
9 help with diapering.

10 (b) "Covered facility" means a commercial place of public amusement,
11 including auditoriums, theatres, convention centers, exhibition halls,
12 permanent amusement parks, and sports arenas, for which the maximum
13 occupancy is determined to be two thousand five hundred or more people.

14 (c) "Disability" shall have the same meaning as provided for in subdi-
15 vision twenty-one of section two hundred ninety-two of the executive
16 law.

17 2. All single-occupancy bathrooms located in covered facilities shall
18 install and maintain at least one adult changing accommodation for
19 persons with a physical disability that is accessible to individuals of
20 any gender when the facility is open to the public, and shall ensure
21 that such bathroom shall be clearly designated by the posting of such on

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD08285-03-6

1 or near the entry door of each bathroom, and, if the facility has a
2 central directory, shall ensure that the central directory indicates the
3 location of the adult changing accommodation, provided that:

4 (a) Covered facilities newly constructed on or after January first,
5 two thousand twenty-seven shall comply with the provisions of this
6 section at the time of construction;

7 (b) Existing covered facilities renovated on or after January first,
8 two thousand twenty-seven, shall comply with the provisions of this
9 section at the time of renovation; and

10 (c) Any other existing covered facility shall comply with the
11 provisions of this section no later than January first, two thousand
12 thirty-four.

13 3. The commissioner of the office of general services, in collab-
14 oration with the chief disability officer, shall promulgate regulations
15 in order to effectuate the requirements of this section, including, but
16 not limited to, specifications regarding the dimensions of such adult
17 changing accommodations.

18 § 3. The public buildings law is amended by adding a new section 148
19 to read as follows:

20 § 148. Adult changing accommodations. 1. As used in this section:

21 (a) "state agency" means any state department, office, board, bureau,
22 commission, agency, or any public authority or public benefit
23 corporation at least one of whose members is appointed by the governor;

24 (b) "state-owned building" means any building owned by a state agency
25 used for official state business;

26 (c) "single-occupancy bathroom" means a bathroom intended for use by
27 no more than one occupant at a time or for family or assisted use and
28 which has a door for entry into and egress from the bathroom that may be
29 locked by the occupant to ensure privacy and security; and

30 (d) "adult changing accommodation" means a height-adjustable adult
31 changing table that is for use by persons with disabilities who need
32 help with diapering.

33 2. Each state agency shall ensure that all state-owned buildings
34 determined by the commissioner of the office of general services to be
35 open to the public shall have at least one single-occupancy bathroom in
36 such building with an adult changing accommodation by January first, two
37 thousand thirty.

38 3. The commissioner of the office of general services, in collab-
39 oration with the chief disability officer, shall promulgate regulations
40 in order to effectuate the requirements of this section, including, but
41 not limited to, specifications regarding the dimensions of such adult
42 changing accommodations.

43 § 4. This act shall take effect immediately.